IN THE DISTRICT COURT OF APPEAL
FIFTH DISTRICT, STATE OF FLORIDA

7-ELEVEN, INC.,

Appellant,

v.

STATE OF FLORIDA DEPARTMENT OF TRANSPORTATION, R.M. GREEN CORPORATION, HANCOCK WHITNEY BANK, JON JONES, LG GAS STORES, INC., FAHIM, INC., and LAKE COUNTY TAX COLLECTOR.

Appellees.
_____/

DCA CASE NO. 5D2026-1253

L.T. CASE NO. 35-2025-CA-002249

APPELLEE STATE OF FLORIDA DEPARTMENT OF TRANSPORTATION'S ANSWER BRIEF

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STATEMENT OF THE CASE AND OF THE FACTS

The Department has a project to realign part of State Road 50 in Lake County. (A 90, 234.) Today, SR 50 runs through downtown Groveland. (A 90.) The project will reroute SR 50 around downtown, enhancing traffic operations and safety:

(A 90-91, 204.)

In connection with its project, the Department sought to acquire Parcel 154, the southwestern corner of a six-acre commercial site at the intersection of State Roads 50 and 33:

(A 28-47, 89-90, 234-235.) R.M. Green owns the site and leases it to 7-Eleven, who operates a gas station there. (IB 1.)

R.M. Green and 7-Eleven contested the taking. (A 48-61.) The trial court convened a hearing (A 80-191) and entered an order of taking (A 6-17). The order finds that under Supreme Court precedent, the court's role is "limited" to assuring that the Department acted in good faith, did not exceed its authority, and did not abuse its discretion. (A 8.)

While R.M. Green and 7-Eleven raised several points below, 7-Eleven presents only three for review here. (IB 8-15.) Turning to

those specific arguments, the order finds that while there was a section of the proposed condemnation that "[7-Eleven's] experts claimed was unnecessary and excessive, … the construction plans show that this is simply not the case." (A 11.) The order finds that the plans "show the need for the land with specific plans for drainage and pipes in the area of the existing pond, thus appropriately demonstrating a need for the property." (A 12.)

The evidence "demonstrated Petitioner's need and plan for use of the area of the take" which "includes the area of a pond on the existing property." (A 12.) The court held that 7-Eleven's argument that this partial taking of the pond is for an impermissible private use is "unsupported." *Id.* The Department had a permit to receive some of the water from the pond and the plans show drainage pipes and other structures to support additional water entering the pond. *Id.* These structures would be built within the footprint of the acquisition and the Department would be responsible for their maintenance and upkeep. *Id.* "There is no evidence" that 7-Eleven would be required to maintain the Department's structures. *Id.*

The order finds that the Department "need not construct in an area outside of the legal description as defined in the Petition in Eminent Domain." (A 14.)

The order of taking finds that the condemnation of Parcel 154 is for a valid public purpose, is reasonably necessary for that purpose, and that the Department has properly exercised its delegated authority. (A 15.) The order requires the Department to deposit $929,300 with the clerk of court as a good faith estimate of value, and that upon the clerk's receipt of this deposit, fee simple interest in Parcel 154 would vest in the Department. (A 15-16.)

This appeal followed.

SUMMARY OF ARGUMENT

Binding precedent holds that this Court's review is limited to whether the trial court's decision is supported by competent substantial evidence. Competent substantial evidence supports the order on appeal. 7-Eleven does not argue otherwise. Because this Court may not reweigh the evidence, it is immaterial that competent substantial evidence could support different findings.

ARGUMENT

I. Review is "limited" to whether competent, substantial evidence supports the trial court's decision.

"When the trial court approves the determination of reasonable necessity and finds no abuse of discretion, a reviewing court is then limited to deciding whether or not there was competent substantial evidence to support the decision of the trial court." *Hillsborough Cnty. v. Sapp*, 280 So. 2d 443, 445 (Fla. 1973); *Sec. Mgmt. Corp. v. Dep't of Transp.*, 718 So. 2d 339, 340 (Fla. 4th DCA 1998) ("If a trial court enters an order of taking concluding that the department did not abuse its discretion, this court's review is limited to deciding whether there was competent substantial evidence to support the decision of the trial court.").

When reviewing an order of taking, the appellate court "cannot reweigh the trial court's findings of fact if they are based on competent substantial evidence." *Pasco Cnty. v. Franzel*, 569 So. 2d 877, 879 (Fla. 2d DCA 1990).

The Department agrees that legal conclusions are reviewed de novo. (IB 8.)

II. The initial brief does not contest that the trial court's finding of valid public purpose is supported by competent substantial evidence.

The Department agrees that Florida law requires that condemnation may be pursued only in furtherance of a public purpose. (IB 8-9.) The order on appeal specifically finds that "the condemnation of Parcel 154 is for a valid public purpose" (A 15) and that 7-Eleven's argument that the condemnation is for a private use is "unsupported." (A 12.)

The initial brief does not feint at the governing standard "limit[ing]" this Court's review to whether these findings are supported by competent substantial evidence. *Sapp*, 280 So. 2d at 445; *Sec. Mgmt. Corp.*, 718 So. 2d at 340. As the appellant, 7-Eleven has the burden to demonstrate error; the Department as appellee has no countervailing burden. *Crist v. State*, 419 So. 3d 183, 203 (Fla. 5th DCA 2025), *review denied*, 2026 WL 253283 (Fla. Jan. 30, 2026), *cert. denied sub nom.*, *Crist v. Fla.*, 2026 WL 2976473 (U.S. Oct. 5, 2026). "As a well-established corollary to that principle, the appellant has a preservation-and-presentation requirement, but the appellee does not." *Id.* Any argument that the

trial court's finding of a valid public purpose is not supported by competent substantial evidence is waived or abandoned. *Rosier v. State*, 276 So. 3d 403, 406 (Fla. 1st DCA 2019) ("For an appellant to raise an issue properly on appeal, he must raise it in the initial brief. Otherwise, issues not raised in the initial brief are considered waived or abandoned.").

While the Department does not have the burden of showing that the trial court's finding is supported by competent substantial evidence, *Crist*, 419 So. 3d at 203, the record reflects this exchange with the project's engineer of record:

> Q Can you inform the Court as to what would occur if the Department does not take this proposed area for the pond? …
> A The intersection wouldn't function for traffic. …
> Q And if the area that is Parcel 154 was reduced to alleviate the area of the pond, what would occur to the construction plans and the plan for the roadway?
> A You wouldn't be able to get the trail in. You wouldn't be able to get the trucks. It wouldn't function the way the land is needed to, to get around the downtown area.

(A 155.) The record reflects that the Department is not taking private property to build a private retention pond. Instead, Parcel

154 “cuts through an existing retention pond on the 7-Eleven property” (A 98), as shown:

(A 234.) The Department will take in and is “accounting specifically” for stormwater from this pond through its permitting. (A 99.) The project includes grading and slope for the pond. (A 101.) The project’s engineer of record confirmed on cross that this is all for a public purpose. (A 102.)

At best, the initial brief cherry-picks evidence that could support a different finding. (IB 8-11.) This Court may not reweigh evidence, *Franzel*, 569 So. 2d at 879, because Florida appellate courts “recognize and honor the trial court’s superior vantage point in assessing the credibility of witnesses and in making findings of fact. The deference that appellate courts afford findings of fact based on competent, substantial evidence is an important principle of appellate review.” *Stephens v. State*, 748 So. 2d 1028, 1034 (Fla. 1999). The initial brief goes into some detail on how 7-Eleven’s experts testified. (IB 3-8.) But on competent substantial evidence review, “it does not matter that there might be competent

substantial evidence to support a contrary view of the evidence." *Stinson v. Winn*, 938 So. 2d 554, 555 (Fla. 1st DCA 2006).

III. The initial brief does not contest that the trial court's findings of reasonable necessity are supported by competent substantial evidence.

Once again, the Department and 7-Eleven agree on a legal principle: The Department cannot take more property than is reasonably necessary to serve the underlying public purpose. (IB 11-12.) But, once again, the order on appeal makes express findings on this point – here, rejecting 7-Eleven's expert's claims that part of the taking was unnecessary or excessive and finding that the Department had demonstrated necessity (A 11-12) – that 7-Eleven does not challenge as unsupported by competent substantial evidence.[1] So, once again, 7-Eleven has failed in its burdens of preservation and presentment. *Crist*, 419 So. 3d at 203. And while there may be evidence that would support a different finding (IB 12-14), "it does not matter[.]" *Stinson*, 938 So. 2d at 555.

[1] The Department appreciates 7-Eleven's concession of necessity to construct turn lanes and a multi-use trail. (IB 12.)

While the Department does not have the burden of showing that the trial court's finding is supported by competent substantial evidence, *Crist*, 419 So. 3d at 203, the record reflects this exchange with the project's engineer of record on direct examination:

> Q Does the Department of Transportation intend for good faith to construct the project on or over Parcel 154?
> A Yes.
> Q And does the Department of Transportation need this property to build the project?
> A Yes.

(A 91.) The record reflects this exchange on cross examination:

> Q Okay. And is it necessary that the Department acquire all of Parcel 154 in order to construct the project?
> A Yes.

(A 97.)

The order identifies specific record evidence supporting its holding:

> Specifically, within Exhibit D, the Drainage Map Post on sheet no. 12 and the Drainage Structures SR 50 on sheet no. 202, show the need for the land with specific plans for drainage and pipes in the area of the existing pond, thus appropriately demonstrating a need for the property. Additionally, within Exhibit D, the Cross Sections SR 50 on sheet no. 344, shows the change in the land and the subsoil excavation in the area of the existing pond.

(A 12.) These documents are of record:

(A 207.)

(A 218.)

(A 223.)

The order finds that "[t]hese plans, along with the testimony of Petitioner's engineer, John Saunders, demonstrates Petitioner's need and plan for use of the area of the take. This taking includes the area of a pond on the existing property." (A 12.)

IV. The initial brief does not contest that the trial court's finding that construction would stay within the boundaries of the taking is supported by competent substantial evidence.

Once the Department decided that the taking of Parcel 154 was necessary, "the role of the court is limited to assuring that the condemnor acted in good faith, did not exceed its authority, and did not abuse its discretion." *Sapp*, 280 So. 2d at 445.

The Department "enjoy[s] broad discretion in determining which property and how much of it is necessary for public purposes." *Sch. Bd. of Broward Cnty. v. Viele*, 459 So. 2d 354, 356 (Fla. 4th DCA 1984); *Canal Auth. v. Miller*, 243 So. 2d 131, 133 (Fla.

1970) ("a court is not authorized to substitute its judgment for that of a governmental body acting within the scope of its lawful authority . . . This includes both the amount and the location of land to be condemned."). The trial court's role was thus "analogous to that of this court's review of a trial court's discretionary powers." *Viele*, 459 So. 2d at 356. Under this familiar standard, "[i]f reasonable men could differ as to the propriety of the action taken by the trial court, then the action is not unreasonable and there can be no finding of an abuse of discretion." *Id.* (quoting *Canakaris v. Canakaris*, 382 So. 2d 1197, 1203 (Fla. 1980)).

A condemning authority's discretion is not unbridled. As acknowledged above, a condemnor is "not permitted to take a greater quantity of property, or greater interest or estate therein, than is necessary to serve the particular public use for which the property is being acquired." *Miller*, 243 So. 2d at 133. This is appropriate: the power of eminent domain is a weighty one, potentially subject to abuse, and should not be used to acquire more property than necessary just because the condemning authority wants some elbow room. *Klatt v. Fla. Power & Light Co.*,

414 So. 2d 213, 214 (Fla. 4th DCA 1982) (reversing order of taking of 30-foot utility easement where utility admitted ten-foot easement would suffice); *but see Carlor Co. v. City of Miami*, 62 So. 2d 897, 903 (Fla. 1953) ("The hands of public officials should not be tied to the immediate necessities of the present but they should be permitted, within reasonable limitations, to contemplate and plan for the future."). But 7-Eleven's implication that a court may deny a properly supported taking because the court believes the condemning authority is taking *less* property than necessary has no support in Florida law.

7-Eleven points to *State Road Department v. Darby* (IB 14-15), which stands for the banal proposition that a condemnor may be held liable for an implied taking. 109 So. 2d 591, 593 (Fla. 1st DCA 1959).

Darby involved the botched reconstruction of a state road in Escambia County. 109 So. 2d at 592. A substantial amount of clay, sand, and silt washed onto Darby's property and caused permanent damage. *Id.* It was uncontested that the damage resulted from the contractor's negligence. *Id.* at 593. While the State Road

Department could not be liable as a joint tortfeasor (not in 1959 at least), the court held that a "taking is implied on the theory that the damage was a necessary incident to the prosecution of the work." *Id.*

Under *Darby*, if the Department prepares the plans and specifications, supervises the work, determines that the contractor's faulty work results in damage amounting to a taking, and fails to promptly remedy the situation, a taking is implied. 109 So. 2d at 593. None of that happened here. 7-Eleven cites no authority holding that a court may deny a properly supported taking of Whiteacre because the court believes the condemnor should also take Blackacre.

If accepted, 7-Eleven's distortion of *Darby* would impose an untenable Goldilocks standard by which condemning authorities would have to show that they seek neither too much nor too little. Florida law already provides ample remedies – inverse condemnation, trespass, negligence, equitable relief – when public works injure private property. Nothing in this record supports their application here.

Even if courts did have the power to deny a taking because the condemnor did not seek enough property, the order on appeal finds that the Department was not taking the additional area and that the Department "need not construct in an area outside of the legal description as defined in the Petition in Eminent Domain." (A 14.) The project's engineer of record did not agree that a temporary construction easement to harmonize the driveway with the newly constructed road was necessary. (A 158.) He testified that the driveway could remain open during construction and that the property would retain access during construction. *Id.* If an easement should become necessary in the future, the Department can petition to acquire it then. *Ahlheit v. State Road Dep't*, 114 So. 2d 623, 624 (Fla. 1st DCA 1959) ("Even if a part of the described property is necessary to the road project in suit, we know of no rule of law that requires the condemnor under such circumstances to include in a single proceeding all the property required for the project or, indeed, ever to institute proceedings for condemnation of a particular parcel of land or interest therein.").

CONCLUSION

Accordingly, the Court should affirm.

Respectfully submitted,

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CERTIFICATE OF SERVICE

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CERTIFICATE OF COMPLIANCE

I CERTIFY that this brief complies with the font requirements of Rule 9.045(b) and the word count limits of Rule 9.210(a)(2)(B).

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